

HOUSE No. 1790

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting children from domestic violence.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/14/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>2/11/2025</i>

HOUSE No. 1790

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1790) of Bradley H. Jones, Jr., and others relative to the penalty for assault or an assault and battery upon another and in the presence of a child. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1588 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting children from domestic violence.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 13A of chapter 265 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following subsection:-

3 (d) Whoever commits an assault or an assault and battery upon another within a dwelling
4 and in the presence of a child under 16 years of age shall be punished by imprisonment in the
5 state prison for not more than 5 years or in the house of correction for not more than 2½ years, or
6 by a fine of not more than \$5,000, or by both such fine and imprisonment. Furthermore, the law
7 enforcement agency filing the charges shall provide the department of social services, as
8 established in chapter 18B, with a notice of the charges, to be used at the department's
9 discretion.